

THOMAS, J., dissenting

§ 1231(b)(3)(A); see also 8 CFR § 208.16(b) (2020). Like CAT withholding, statutory withholding is unavailable to aliens who have committed certain crimes. § 1231(b)(3)(B)(ii). And like CAT relief, statutory withholding seeks to prevent removability and is considered after the alien has been deemed removable. See, e.g., *Kouambo v. Barr*, 943 F. 3d 205, 210 (CA4 2019). Thus, statutory withholding claims also do not affect the validity of the underlying removal order and, in the majority's view, would not be subject to § 1252(a)(2)(C).

The Government persuasively argues that adopting petitioner's rule will disturb the courts of appeals' longstanding practice of subjecting criminal aliens' statutory withholding claims to § 1252(a)(2)(C). See, e.g., *Rendon v. Barr*, 952 F. 3d 963, 970 (CA8 2020); *Pierre-Paul v. Barr*, 930 F. 3d 684, 693–694 (CA5 2019); *Gutierrez v. Lynch*, 834 F. 3d 800, 804 (CA7 2016); *Jeune v. United States Atty. Gen.*, 810 F. 3d 792, 806, nn. 3, 12 (CA11 2016); *Pechenkov v. Holder*, 705 F. 3d 444, 448 (CA9 2012). And at oral argument, petitioner all but conceded that the Government is correct on that score. See Tr. of Oral Arg. 20–21. Whistling past the graveyard, the majority attempts to avoid confronting this result by simply stating that the question is not currently before us. *Ante*, at 587. But the Court cannot evade the implications of its decision so easily. We have been presented with two competing statutory interpretations—one of which makes sense of all relevant provisions without upending settled practice, and one of which significantly undermines § 1252(a)(2)(C) by removing a vast swath of claims from its reach. If the majority insists on choosing the latter interpretation, it should justify that choice and candidly confront its implications.

III

At bottom, petitioner's argument is largely driven by policy considerations. He contends that the United States has obligated itself not to return any alien, even a criminal alien,

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to a country where he may be tortured or killed. According to petitioner, if CAT claims cannot be reviewed by courts of appeals, then a vital check on erroneous refoulement will be lost. Petitioner's arguments are not without rhetorical and emotional force. But, like so many other questions related to CAT obligations, Congress chose not to address them through the legislation involved here.

What Congress has done is enact §1252(a)(2)(C), which strips jurisdiction over certain claims of criminal aliens. That is what is before us, not the broader policy considerations. As has been the case for decades now, the decisions of this Court continue to systematically chip away at this statute and other jurisdictional limitations on immigration claims, thus thwarting Congress' intent. See *Guerrero-Lasprilla v. Barr*, 589 U. S. 221, 236–237 (2020) (THOMAS, J., dissenting); *INS v. St. Cyr*, 533 U. S. 289, 328–330 (2001) (Scalia, J., dissenting). Because today's erroneous result further weakens a duly enacted statute, I respectfully dissent.

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LOMAX *v.* ORTIZ-MARQUEZ ET AL.CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE TENTH CIRCUIT

No. 18–8369. Argued February 26, 2020—Decided June 8, 2020

The Prison Litigation Reform Act of 1995 (PLRA) established what has become known as the three-strikes rule, which generally prevents a prisoner from bringing suit *in forma pauperis* (IFP) if he has had three or more prior suits “dismissed on the grounds that [they were] frivolous, malicious, or fail[ed] to state a claim upon which relief may be granted.” 28 U. S. C. § 1915(g).

Petitioner Arthur Lomax, an inmate in a Colorado prison, filed this suit against respondent prison officials to challenge his expulsion from the facility’s sex-offender treatment program. He also moved for IFP status, but he had already brought three unsuccessful legal actions during his time in prison. If the dispositions of those cases qualify as strikes under Section 1915(g), Lomax may not now proceed IFP. The courts below concluded that they did, rejecting Lomax’s argument that two of the dismissals should not count as strikes because they were without prejudice.

Held: Section 1915(g)’s three-strikes provision refers to any dismissal for failure to state a claim, whether with prejudice or without.

This case begins, and pretty much ends, with Section 1915(g)’s text. The provision’s broad language covers all dismissals for failure to state a claim, whether issued with or without prejudice to a plaintiff’s ability to reassert his claim in a later action. A strike-call under Section 1915(g) thus hinges exclusively on the basis for the dismissal, regardless of the decision’s prejudicial effect. To reach the opposite result would require reading the word “dismissed” in Section 1915(g) as “dismissed with prejudice.” Doing so would also introduce inconsistencies into the PLRA, which has three other provisions mentioning “dismiss[als]” for “fail[ure] to state a claim.” §§ 1915(e)(2)(B)(ii), 1915A(b); 42 U. S. C. § 1997e(c). As the parties agree, those provisions do not deprive courts of the ability to dismiss suits without prejudice.

Lomax nonetheless maintains that Section 1915(g)’s phrase “dismissed [for] fail[ure] to state a claim” is a “legal term of art” referring only to dismissals with prejudice. To support this view, he points to Federal Rule of Civil Procedure 41(b), which tells courts to treat a dismissal “as an adjudication on the merits”—meaning a dismissal with prejudice—where the dismissal order does not specify. But Rule 41(b) is necessary

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precisely because “dismissed for failure to state a claim” refers to dismissals both with and without prejudice. The existence of the rule thus undercuts Lomax’s position.

Lomax also argues that the Court should interpret the phrase “failure to state a claim” based on the other two grounds for dismissal listed in Section 1915(g). But contra Lomax’s view, courts can and sometimes do dismiss at least frivolous actions without prejudice. Still more fundamentally, interpreting the phrase “failure to state a claim” based on the pre-existing terms “frivolous” and “malicious” would defeat the PLRA’s expansion of the statute beyond what was already there. Pp. 599–603.

754 Fed. Appx. 756, affirmed.

KAGAN, J., delivered the opinion of the Court, in which ROBERTS, C. J., and GINSBURG, BREYER, ALITO, SOTOMAYOR, GORSUCH, and KAVANAUGH, JJ., joined, and in which THOMAS, J., joined as to all but footnote 4.

Brian T. Burgess argued the cause for petitioner. With him on the briefs was *Eric D. Lawson*.

Eric R. Olson, Solicitor General of Colorado, argued the cause for respondents. With him on the brief were *Philip J. Weiser*, Attorney General of Colorado, *Nicole Gellar*, First Assistant Attorney General, *Grant T. Sullivan*, Assistant Solicitor General, and *Josh Urquhart*, *Alexa D. Jones*, and *Daniel J. De Cecco*, Assistant Attorneys General.

Deputy Attorney General Rosen argued the cause for the United States as *amicus curiae* urging affirmance. On the brief were *Solicitor General Francisco*, *Assistant Attorney General Hunt*, *Deputy Solicitor General Wall*, *Colleen E. Roh Sinzdak*, *Barbara L. Herwig*, and *Caroline D. Lopez*.*

*A brief of *amicus curiae* urging reversal was filed for the National Association of Criminal Defense Lawyers by *Anthony F. Shelley*, *Dawn E. Murphy-Johnson*, and *Barbara E. Bergman*.

Briefs of *amici curiae* urging affirmance were filed for the State of Arizona et al. by *Mark Brnovich*, Attorney General of Arizona, *Oramel H. Skinner*, Solicitor General, *Drew C. Ensign*, Deputy Solicitor General, and *Robert J. Makar*, Assistant Attorney General, by *William Tong*, Attorney General of Connecticut, *Clare E. Kindall*, Solicitor General, and *James Donohue*, Assistant Attorney General, and by the Attorneys General for their respective jurisdictions as follows: *Steve Marshall* of Ala-

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JUSTICE KAGAN delivered the opinion of the Court.†

To help staunch a “flood of nonmeritorious” prisoner litigation, the Prison Litigation Reform Act of 1995 (PLRA) established what has become known as the three-strikes rule. *Jones v. Bock*, 549 U. S. 199, 203 (2007). That rule generally prevents a prisoner from bringing suit *in forma pauperis* (IFP)—that is, without first paying the filing fee—if he has had three or more prior suits “dismissed on the grounds that [they were] frivolous, malicious, or fail[ed] to state a claim upon which relief may be granted.” 28 U. S. C. § 1915(g). Today we address whether a suit dismissed for failure to state a claim counts as a strike when the dismissal was without prejudice. We conclude that it does: The text of Section 1915(g)’s three-strikes provision refers to any dismissal for failure to state a claim, whether with prejudice or without.

I

Petitioner Arthur Lomax is an inmate in a Colorado prison. He filed this suit against respondent prison officials to challenge his expulsion from the facility’s sex-offender

bama, Kevin G. Clarkson of Alaska, Leslie Rutledge of Arkansas, Ashley Moody of Florida, Christopher M. Carr of Georgia, Clare E. Connors of Hawaii, Lawrence G. Wasden of Idaho, Kwame Raoul of Illinois, Curtis T. Hill, Jr., of Indiana, Thomas J. Miller of Iowa, Derek Schmidt of Kansas, Daniel Cameron of Kentucky, Jeff Landry of Louisiana, Aaron M. Frey of Maine, Dana Nessel of Michigan, Eric S. Schmitt of Missouri, Timothy C. Fox of Montana, Douglas J. Peterson of Nebraska, Wayne Stenehjem of North Dakota, Dave Yost of Ohio, Mike Hunter of Oklahoma, Ellen F. Rosenblum of Oregon, Josh Shapiro of Pennsylvania, Peter F. Neronha of Rhode Island, Alan Wilson of South Carolina, Jason Ravnsborg of South Dakota, Herbert H. Slatery III of Tennessee, Ken Paxton of Texas, Sean D. Reyes of Utah, and Robert W. Ferguson of Washington; and for the Council of State Governments et al. by Misha Tseytlin, Elizabeth Holt Andrews, and Lisa Soronen.

A brief of *amicus curiae* was filed for the Roderick and Solange MacArthur Justice Center by David M. Shapiro.

†JUSTICE THOMAS joins all but footnote 4 of this opinion.

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treatment program. As is common in prison litigation, he also moved for IFP status to allow his suit to go forward before he pays the \$400 filing fee. For that motion to succeed, Lomax must avoid Section 1915(g). That provision bars further IFP litigation once a prisoner has had at least three prior suits dismissed on specified grounds.¹ And Lomax is no rookie litigant. During his time in prison, he has already brought three unsuccessful legal actions (against various corrections officers, prosecutors, and judges). If the dispositions of those cases qualify as strikes under Section 1915(g), Lomax may not now proceed IFP.

The courts below ruled that Lomax had struck out. The District Court denied his motion for IFP status, finding that all three of his prior suits had been dismissed for failure to state a claim—one of the grounds specified in Section 1915(g). See App. 65–66.² On appeal, Lomax argued that two of those dismissals should not count as strikes because they were without prejudice, thus allowing him to file a later suit on the same claim. The Court of Appeals for the Tenth Circuit rejected that argument. Relying on Circuit precedent, the Court held it “immaterial to the strikes analysis”

¹The full text of the three-strikes provision reads:

“In no event shall a prisoner bring a civil action or appeal a judgment in a civil action or proceeding [*in forma pauperis*] if the prisoner has, on 3 or more prior occasions, while incarcerated or detained in any facility, brought an action or appeal in a court of the United States that was dismissed on the grounds that it is frivolous, malicious, or fails to state a claim upon which relief may be granted, unless the prisoner is under imminent danger of serious physical injury.” 28 U. S. C. § 1915(g).

²Two of the cases were dismissed under *Heck v. Humphrey*, 512 U. S. 477 (1994), which holds that a claim challenging the validity of a conviction or sentence under 42 U. S. C. § 1983 “does not accrue until the conviction or sentence has been invalidated.” 512 U. S., at 490. In concluding that those two *Heck* dismissals were for failure to state a claim, the District Court followed Circuit precedent. See *Smith v. Veterans Admin.*, 636 F.3d 1306, 1312 (CA10 2011). Not all Courts of Appeals accept that view. See, e. g., *Mejia v. Harrington*, 541 Fed. Appx. 709, 710 (CA7 2013). But Lomax did not raise that issue, and we therefore do not address it.

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whether a dismissal was with or without prejudice. 754 Fed. Appx. 756, 759 (2018) (quoting *Childs v. Miller*, 713 F. 3d 1262, 1266 (CA10 2013)).

The Courts of Appeals have long divided over whether a dismissal without prejudice for failure to state a claim qualifies as a strike under Section 1915(g).³ In line with our duty to call balls and strikes, we granted certiorari to resolve the split, 589 U. S. 1031 (2019), and we now affirm.

II

This case begins, and pretty much ends, with the text of Section 1915(g). Under that provision, a prisoner accrues a strike for any action “dismissed on the ground[] that it . . . fails to state a claim upon which relief may be granted.” That broad language covers all such dismissals: It applies to those issued both with and without prejudice to a plaintiff’s ability to reassert his claim in a later action.⁴ A strike-call under Section 1915(g) thus hinges exclusively on the basis for the dismissal, regardless of the decision’s prejudicial effect. To reach the opposite result—counting prejudicial orders alone as strikes—we would have to read the simple

³ Four Circuits treat dismissals without prejudice for failure to state a claim as strikes. See *Orr v. Clements*, 688 F. 3d 463, 465 (CA8 2012); *Paul v. Marberry*, 658 F. 3d 702, 704 (CA7 2011); *O’Neal v. Price*, 531 F. 3d 1146, 1154 (CA9 2008); *Day v. Maynard*, 200 F. 3d 665, 667 (CA10 1999) (*per curiam*). Two Circuits do the opposite. See *Millhouse v. Heath*, 866 F. 3d 152, 162–163 (CA3 2017); *McLean v. United States*, 566 F. 3d 391, 396–397 (CA4 2009).

⁴ Note, however, that the provision does not apply when a court gives a plaintiff leave to amend his complaint. Courts often take that path if there is a chance that amendment can cure a deficient complaint. See Fed. Rule Civ. Proc. 15(a) (discussing amendments to pleadings). In that event, because the suit continues, the court’s action falls outside of Section 1915(g) and no strike accrues. See Brief for Respondents 31–35 (noting that flexible amendment practices “ensure that potentially meritorious prisoner suits are not hastily dismissed with a strike”); Brief for United States as *Amicus Curiae* 27–28 (similar); Tr. of Oral Arg. 32–34, 44 (similar).

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word “dismissed” in Section 1915(g) as “dismissed with prejudice.” But this Court may not narrow a provision’s reach by inserting words Congress chose to omit. See, *e. g.*, *Virginia Uranium, Inc. v. Warren*, 587 U.S. 761, 765 (2019) (lead opinion of GORSUCH, J.).

Indeed, to do so would violate yet another rule of statutory construction: “In all but the most unusual situations, a single use of a statutory phrase must have a fixed meaning” across a statute. *Cochise Consultancy, Inc. v. United States ex rel. Hunt*, 587 U.S. 262, 268 (2019). The PLRA includes three other provisions mentioning “dismiss[als]” for “fail[ure] to state a claim”—each enabling courts to dismiss *sua sponte* certain prisoner suits on that ground. §§1915(e)(2)(B)(ii), 1915A(b); 42 U.S.C. §1997e(c). No one here thinks those provisions deprive courts of the ability to dismiss those suits without prejudice. See Reply Brief 15; Brief for Respondents 21–24; Brief for United States as *Amicus Curiae* 21–22. Nor would that be a plausible position. The broad statutory language—on its face covering dismissals both with and without prejudice—tracks courts’ ordinary authority to decide whether a dismissal for failure to state a claim should have preclusive effect. So reading the PLRA’s three-strikes rule to apply only to dismissals with prejudice would introduce inconsistencies into the statute. The identical phrase would then bear different meanings in provisions almost next-door to each other.

Still, Lomax maintains that the phrase “dismissed [for] fail[ure] to state a claim” in Section 1915(g) is a “legal term of art” referring only to dismissals with prejudice. Reply Brief 4. To support that view, he relies on a procedural rule used to answer a different question. When a court dismisses a case for failure to state a claim, but neglects to specify whether the order is with or without prejudice, how should a later court determine its preclusive effect? Federal Rule of Civil Procedure 41(b), codifying an old equitable principle, supplies the answer: It tells courts to treat the

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dismissal “as an adjudication on the merits”—meaning a dismissal with prejudice. See *Durant v. Essex Co.*, 7 Wall. 107, 109 (1869). According to Lomax, “Section 1915(g) should be interpreted in light of this legal backdrop.” Brief for Petitioner 17. He reasons: Because Rule 41(b) presumes that an order stating only “dismissed for failure to state a claim” is with prejudice, the same language when used in Section 1915(g) should bear that same meaning. And if so, the provision would assign a strike to only with-prejudice dismissals for failure to state a claim.

But that argument gets things backwards. The Rule 41(b) presumption (like its older equitable counterpart) does not convert the phrase “dismissed for failure to state a claim” into a legal term of art meaning “dismissed with prejudice” on that ground. To the contrary, Rule 41(b) is necessary because that phrase means only what it says: “dismissed for failure to state a claim”—whether or not with prejudice. In other words, the phrase’s indifference to prejudicial effect is what creates the need for a default rule to determine the import of a dismissal when a court fails to make that clear. Rule 41(b), then, actually undercuts Lomax’s position: Its very existence is a form of proof that the language used in Section 1915(g) covers dismissals both with and without prejudice. And here too, confirmation of the point comes from the PLRA’s other provisions referring to “dismiss[als]” for “fail[ure] to state a claim.” See *supra*, at 600. If that phrase had really become a legal term of art implying “with prejudice,” then those provisions would prevent courts from dismissing prisoner suits without prejudice for failure to state a claim. But Lomax himself does not accept that improbable reading. See *ibid.* His supposed “term of art” is strangely free-floating, transforming ordinary meaning in one place while leaving it alone in all others.

Lomax also makes an argument based on the two other grounds for dismissal listed in Section 1915(g). Recall that the provision counts as strikes dismissals of actions that are

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“frivolous” or “malicious,” along with those that fail to state a claim. See *supra*, at 598, n. 1. In Lomax’s view, the first two kinds of dismissals “reflect a judicial determination that a claim is irretrievably defective”—that it “cannot succeed and should not return to court.” Brief for Petitioner 11, 22 (internal quotation marks omitted). To “harmonize [all] three grounds for strikes,” he continues, the same must be true of dismissals for failure to state a claim. *Id.*, at 23; see *id.*, at 21 (invoking the “interpretive canon *noscitur a sociis*, a word is known by the company it keeps” (internal quotation marks omitted)). So Section 1915(g), Lomax concludes, must capture only the subset of those dismissals that are issued with prejudice—the ones disposing of “irredeemable” suits. *Id.*, at 21.

As an initial matter, the very premise of that argument is mistaken. Contra Lomax’s view, courts can and sometimes do conclude that frivolous actions are not “irretrievably defective,” and thus dismiss them without prejudice. See, e. g., *Marts v. Hines*, 117 F. 3d 1504, 1505 (CA5 1997); see also *Jackson v. Florida Dept. of Financial Servs.*, 479 Fed. Appx. 289, 292 (CA11 2012) (similarly if less commonly, dismissing a malicious action without prejudice). Indeed, this Court has suggested that a trial court might abuse its discretion by dismissing an IFP suit *with prejudice* if “frivolous factual allegations [can] be remedied through more specific pleading.” *Denton v. Hernandez*, 504 U.S. 25, 34 (1992). So on Lomax’s own metric—whether down the road the plaintiff’s claim might return—the dismissals he claims would be outliers in Section 1915(g) in fact would have company. And because that is true, his reason for excluding those decisions from the provision collapses. If dismissals without prejudice for frivolousness count as a strike under Section 1915(g), then why not for failure to state a claim too?

Still more fundamentally, Lomax is wrong to suggest that every dismissed action encompassed in Section 1915(g) must closely resemble frivolous or malicious ones. The point of

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the PLRA, as its terms show, was to cabin not only abusive but also simply meritless prisoner suits. Before the PLRA, the statute governing IFP claims targeted frivolous and malicious actions, but no others. See *Neitzke v. Williams*, 490 U. S. 319, 328 (1989). In the PLRA, Congress chose to go further—precisely by aiming as well at actions that failed to state a claim. The theory was that a “flood of nonmeritorious claims,” even if not in any way abusive, was “effectively preclud[ing] consideration of” suits more likely to succeed. *Jones*, 549 U. S., at 203. So we cannot, in the interest of “harmonization,” interpret the phrase “failure to state a claim” based on the pre-existing terms “frivolous” and “malicious.” Cf. *Babbitt v. Sweet Home Chapter, Communities for Great Ore.*, 515 U. S. 687, 702, 705 (1995) (rejecting use of the *noscitur* canon when “the Senate went out of its way to add” a “broad word” to a statute). That would defeat the PLRA’s *expansion* of the statute beyond what was already there.

III

The text of the PLRA’s three-strikes provision makes this case an easy call. A dismissal of a suit for failure to state a claim counts as a strike, whether or not with prejudice. We therefore affirm the judgment below.

It is so ordered.

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UNITED STATES FOREST SERVICE ET AL. *v.*
COWPASTURE RIVER PRESERVATION
ASSOCIATION ET AL.CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE FOURTH CIRCUIT

No. 18–1584. Argued February 24, 2020—Decided June 15, 2020*

Petitioner Atlantic Coast Pipeline, LLC (Atlantic), sought to construct an approximately 604-mile natural gas pipeline from West Virginia to North Carolina along a route that traversed 16 miles of land within the George Washington National Forest. As relevant here, Atlantic secured a special use permit from the United States Forest Service, obtaining a right-of-way for a 0.1-mile segment of pipe some 600 feet below a portion of the Appalachian National Scenic Trail (Appalachian Trail or Trail), which also crosses the National Forest. Respondents filed a petition for review in the Fourth Circuit, contending, *inter alia*, that the issuance of the special use permit for the right-of-way under the Trail violated the Mineral Leasing Act (Leasing Act). Atlantic intervened. The Fourth Circuit vacated the permit, holding that the Leasing Act did not empower the Forest Service to grant the right-of-way because the Trail became part of the National Park System when the Secretary of the Interior delegated its authority over the Trail's administration to the National Park Service, and that the Leasing Act prohibits pipeline rights-of-way through lands in the National Park System.

Held: Because the Department of the Interior's decision to assign responsibility over the Appalachian Trail to the National Park Service did not transform the land over which the Trail passes into land within the National Park System, the Forest Service had the authority to issue the special use permit. Pp. 609–624.

(a) These cases involve the interaction of multiple federal laws. The Weeks Act provided for the acquisition of lands for inclusion in the National Forest System, stating that such lands “shall be permanently reserved, held, and administered as national forest lands.” 16 U. S. C. § 521. The Forest Service, with authority granted by the Secretary of Agriculture, has jurisdiction over the National Forest System, including the George Washington National Forest. The National Trails System

*Together with No. 18–1587, *Atlantic Coast Pipeline, LLC v. Cowpasture River Preservation Association et al.*, also on certiorari to the same court.

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Act (Trails Act) establishes national scenic and national historic trails, 16 U.S.C. § 1244(a), including the Appalachian Trail, § 1244(a)(1). It also empowers the Secretary of the Interior to establish the Trail's location and width by entering into "rights-of-way" agreements with other federal agencies, States, local governments, and private landowners. §§ 1246(a)(2), (d), (e). The Leasing Act enables any "appropriate agency head" to grant "[r]ights-of-way through any Federal lands . . . for pipeline purposes," 30 U.S.C. § 185(a), defining "Federal lands" as "all lands owned by the United States," except (as relevant) lands in the National Park System, § 185(b). The National Park System is, in turn, defined as "any area of land and water now and hereafter administered by the Secretary of the Interior, through the National Park Service for park, monument, historic, parkway, recreational, or other purposes." 54 U.S.C. § 100501. Pp. 609–612.

(b) An examination of the interests and authority granted under the Trails Act shows that the Forest Service "right-of-way" agreements with the National Park Service for the Appalachian Trail did not convert "Federal lands" under the Leasing Act into "lands" within the "National Park System." Pp. 612–619.

(1) A right-of-way is a type of easement. And easements grant only nonpossessory rights of use limited to the purposes specified in the easement agreement: They are not land; they merely burden land that continues to be owned by another. The same principles that apply to right-of-way agreements between private parties apply here, even though the Federal Government owns all lands involved. A right-of-way between two agencies grants only an easement across the land, not jurisdiction over the land itself. Read in light of basic property law principles, then, the plain language of the Trails Act and the agreement between the two agencies did not divest the Forest Service of jurisdiction over the lands crossed by the Trail. Pp. 613–616.

(2) The various duties described in the Trails Act—that the Secretary of the Interior (through the National Park Service) administers the Trail "primarily as a footpath," 16 U.S.C. § 1244(a)(1); can designate Trail uses, provide Trail markers, and establish interpretative and informational sites, § 1246(c); and can regulate the Trail's "protection, management, development, and administration," § 1246(i)—reinforce the conclusion that the agency responsible for the Trail has the limited role of administering a trail easement, but that the underlying land remains within the Forest Service's jurisdiction. P. 617.

(3) This conclusion is also reinforced by the fact that Congress spoke in terms of rights-of-way in the Trails Act rather than in terms of land transfers, as it has unequivocally and directly done in multiple other statutes when it has intended to transfer land from one agency to

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another. See, *e. g.*, Wild and Scenic Rivers Act, 16 U. S. C. § 1281(c). Pp. 618–619.

(c) Respondents’ theory—that the National Park Service administers the Trail, and therefore the lands that the Trail crosses—depends on presuming, with no clear congressional command, a vast expansion of the Park Service’s jurisdiction and a significant curtailment of the Forest Service’s express authority to grant pipeline rights-of-way on “lands owned by the United States.” 30 U. S. C. § 185(b). It also has striking implications for federalism and private property rights, especially given that Congress has used express language in other statutes when it has intended to transfer lands between agencies. Pp. 619–623.

911 F. 3d 150, reversed and remanded.

THOMAS, J., delivered the opinion of the Court, in which ROBERTS, C. J., and BREYER, ALITO, GORSUCH, and KAVANAUGH, JJ., joined, and in which GINSBURG, J., joined except as to Part III–B–2. SOTOMAYOR, J., filed a dissenting opinion, in which KAGAN, J., joined, *post*, p. 624.

Anthony A. Yang argued the cause for petitioners in No. 18–1584. With him on the briefs were *Solicitor General Francisco, Deputy Assistant Attorney General Grant, Deputy Solicitor General Kneedler, Andrew C. Mergen, J. David Gunter II, Avi M. Kupfer, Sarah Kathmann, and John M. Henson*. *Paul D. Clement* argued the cause for petitioner in No. 18–1587. With him on the briefs was *Erin E. Murphy*.

Michael K. Kellogg argued the cause for respondents in both cases. With him on the brief were *Gregory G. Rapawy, Bradley E. Oppenheimer, Austin D. Gerken, Jr., Amelia Burnette, J. Patrick Hunter, Gregory Buppert, and Nathan Matthews*.[†]

[†]Briefs of *amici curiae* urging reversal in both cases were filed for the State of West Virginia et al. by *Patrick Morrissey*, Attorney General of West Virginia, *Lindsay S. See*, Solicitor General, and *Thomas T. Lampman*, Assistant Solicitor General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama; *Kevin G. Clarkson* of Alaska; *Leslie Rutledge* of Arkansas; *Christopher M. Carr* of Georgia; *Lawrence G. Wasden* of Idaho; *Curtis T. Hill, Jr.*, of Indiana; *Derek Schmidt* of Kansas; *Jeff Martin Landry* of Louisiana; *Tim Fox* of Montana; *Doug Peterson* of Nebraska; *Wayne Stenehjem* of North Dakota,

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JUSTICE THOMAS delivered the opinion of the Court.*

We granted certiorari in these consolidated cases to decide whether the United States Forest Service has authority

Dave Yost of Ohio, *Mike Hunter* of Oklahoma, *Jason R. Ravensborg* of South Dakota, *Ken Paxton* of Texas, *Sean Reyes* of Utah, and *Bridget Hill* of Wyoming; for the American Forest Resource Council et al. by *Lawson E. Fite*; for Mountain Valley Pipeline, LLC, by *Thomas C. Jensen*, *Theodore B. Olson*, and *Amir C. Tayrani*; for the National Association of Manufacturers et al. by *John C. Cruden*, *Peter J. Schaumberg*, *Peter Tolsdorf*, *Paul G. Afonso*, *Richard S. Moskowitz*, *Sandra Y. Snyder*, *Daryl Joseffer*, and *Michael Murray*; for the United Association of Journeymen and Apprentices of the Plumbing and Pipe Fitting Industry of the United States and Canada, AFL–CIO, et al. by *Ellen O. Boardman* and *Jennifer R. Simon*; and for Rep. Jeff Duncan et al. by *E. Travis Ramey* and *William Grayson Lambert*.

Briefs of *amici curiae* urging affirmance in both cases were filed for the State of Vermont et al. by *Thomas J. Donovan*, Attorney General of Vermont, *Benjamin D. Battles*, Solicitor General, and *Eleanor L. P. Spottswood* and *Rachel E. Smith*, Assistant Attorneys General, and by the Attorneys General for their respective jurisdictions as follows: *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Karl A. Racine* of the District of Columbia, *Clare E. Connors* of Hawaii, *Kwame Raoul* of Illinois, *Brian E. Frosh* of Maryland, *Maura Healey* of Massachusetts, *Keith Ellison* of Minnesota, *Gurbir S. Grewal* of New Jersey, *Hector Balderas* of New Mexico, *Letitia James* of New York, *Ellen F. Rosenblum* of Oregon, and *Peter F. Neronha* of Rhode Island; for the Commonwealth of Virginia by *Mark R. Herring*, Attorney General of Virginia, *Donald D. Anderson*, Deputy Attorney General, *Toby J. Heytens*, Solicitor General, *Martine E. Cicconi* and *Michelle S. Kallen*, Deputy Solicitors General, and *Jessica M. Samuels*, Assistant Solicitor General; for the Citizens Equal Rights Foundation by *James J. Devine, Jr.*; for the City of Staunton et al. by *Douglas Guynn* and *Cale Jaffe*; for the Natural Resources Defense Council et al. by *Sarah E. Harrington*, *Erica Oleszczuk Evans*, and *Sharon Buccino*; for The Rutherford Institute by *John W. Whitehead*; for the Wintergreen Property Owners Association et al. by *Daniel L. Geyser*, *Carolyn Elephant*, and *Michael J. Hirrel*; and for Pamela Underhill et al. by *William S. Eubanks II* and *Kristin H. Gladd*.

Briefs of *amici curiae* were filed in both cases for the Appalachian Trail Conservancy by *Keith Bradley*, *Peter S. Gould*, *Kelly Mihocik*, *Benjamin Beaton*, and *Brendan Mysliwiec*; for the Niskanen Center by *David Bookbinder*; and for Richard J. Pierce, Jr., by *Mr. Pierce, pro se*.

*JUSTICE GINSBURG joins all but Part III–B–2 of this opinion.

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under the Mineral Leasing Act, 30 U.S.C. § 181 *et seq.*, to grant rights-of-way through lands within national forests traversed by the Appalachian Trail. 588 U.S. 948 (2019). We hold that the Mineral Leasing Act does grant the Forest Service that authority and therefore reverse the judgment of the Court of Appeals for the Fourth Circuit.

I

A

In 2015, petitioner Atlantic Coast Pipeline, LLC (Atlantic) filed an application with the Federal Energy Regulatory Commission to construct and operate an approximately 604-mile natural gas pipeline extending from West Virginia to North Carolina. The pipeline's proposed route traverses 16 miles of land within the George Washington National Forest. The Appalachian National Scenic Trail (Appalachian Trail or Trail) also crosses parts of the George Washington National Forest.

To construct the pipeline, Atlantic needed to obtain special use permits from the United States Forest Service for the portions of the pipeline that would pass through lands under the Forest Service's jurisdiction. In 2018, the Forest Service issued these permits and granted a right-of-way that would allow Atlantic to place a 0.1-mile segment of pipe approximately 600 feet below the Appalachian Trail in the George Washington National Forest.

B

Respondents Cowpasture River Preservation Association, Highlanders for Responsible Development, Shenandoah Valley Battlefields Foundation, Shenandoah Valley Network, Sierra Club, Virginia Wilderness Committee, and Wild Virginia filed a petition for review in the Fourth Circuit. They contended that the issuance of the special use permit for the right-of-way under the Trail, as well as numerous other aspects of the Forest Service's regulatory process, violated the

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Mineral Leasing Act (Leasing Act), 41 Stat. 437, 30 U.S.C. § 181 *et seq.*, the National Environmental Policy Act of 1969, 83 Stat. 852, 42 U.S.C. § 4321 *et seq.*, the National Forest Management Act of 1976, 90 Stat. 2952, 16 U.S.C. § 1604, and the Administrative Procedure Act, 5 U.S.C. § 500 *et seq.* Atlantic intervened in the suit.

The Fourth Circuit vacated the Forest Service’s special use permit after holding that the Leasing Act did not empower the Forest Service to grant the pipeline right-of-way beneath the Trail. As relevant here, the court concluded that the Appalachian Trail had become part of the National Park System because, though originally charged with the Trail’s administration, 16 U.S.C. § 1244(a)(1), the Secretary of the Interior delegated that duty to the National Park Service, 34 Fed. Reg. 14337 (1969). In the Fourth Circuit’s view, this delegation made the Trail part of the National Park System because the Trail was now an “area of land . . . administered by the Secretary [of the Interior] acting through the Director [of the National Park Service].” 54 U.S.C. § 100501. Because it concluded the Trail was now within the National Park System, the court held that the Trail was beyond the authority of “the Secretary of the Interior or appropriate agency head” to grant pipeline rights-of-way under the Leasing Act. 30 U.S.C. § 185(a). See 911 F.3d 150, 179–181 (CA4 2018).¹

II

These cases involve the interaction of multiple federal laws. We therefore begin by summarizing the relevant statutory and regulatory background.

A

Congress enacted the Weeks Act in 1911, Pub. L. 61–435, 36 Stat. 961, which provided for the acquisition of lands for

¹The Fourth Circuit also ruled for respondents on their other statutory claims.

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inclusion in the National Forest System, see 16 U.S.C. §§516–517. The Weeks Act also directed that lands acquired for the National Forest System “shall be permanently reserved, held, and administered as national forest lands.” §521. Though Congress initially granted the Secretary of Agriculture the authority to administer national forest lands, §472, the Secretary has delegated that authority to the Forest Service, 36 CFR §200.3(b)(2)(i) (2019).

What is now known as the George Washington National Forest was established as a national forest in 1918, see Proclamation No. 1448, 40 Stat. 1779, and renamed the George Washington National Forest in 1932, Exec. Order No. 5867. No party here disputes that the George Washington National Forest was acquired for inclusion in the National Forest System and that it is under the jurisdiction of the Forest Service. See 16 U.S.C. §1609.

B

Enacted in 1968, the National Trails System Act (Trails Act), among other things, establishes national scenic and national historic trails. 16 U.S.C. §1244(a). See 82 Stat. 919, codified at 16 U.S.C. §1241 *et seq.* The Appalachian Trail was one of the first two trails created under the Act. §1244(a)(1).

Under the statute, the Appalachian Trail “shall be administered primarily as a footpath by the Secretary of the Interior, in consultation with the Secretary of Agriculture.” *Ibid.* The statute empowers the Secretary of the Interior to establish the location and width of the Appalachian Trail by entering into “rights-of-way” agreements with other federal agencies as well as States, local governments, and private landowners. §§1246(a)(2), (d), (e). However, the Trails Act also contains a proviso stating that “[n]othing contained in this chapter shall be deemed to transfer among Federal agencies any management responsibilities established under any other law for federally administered lands

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which are components of the National Trails System.” § 1246(a)(1)(A).

The Trails Act currently establishes 30 national historic and national scenic trails. See §§ 1244(a)(1)–(30). It assigns responsibility for most of those trails to the Secretary of the Interior. *Ibid.* Though the Act is silent on the issue of delegation, the Department of the Interior has delegated the administrative responsibility over each of those trails to either the National Park Service or the Bureau of Land Management, both of which are housed within the Department of the Interior. Congressional Research Service, M. De Santis & S. Johnson, *The National Trails System: A Brief Overview* 2–3 (Table 1), 4 (Fig. 1) (2020). Currently, the National Park Service administers 21 trails, the Bureau of Land Management administers 1 trail, and the two agencies co-administer 2 trails. *Ibid.* The Secretary of the Interior delegated his authority over the Appalachian Trail to the National Park Service in 1969. 34 Fed. Reg. 14337.

C

In 1920, Congress passed the Leasing Act, which enabled the Secretary of the Interior to grant pipeline rights-of-way through “public lands, including the forest reserves,” § 28, 41 Stat. 449. Congress amended the Leasing Act in 1973 to provide that not only the Secretary of the Interior but also any “appropriate agency head” may grant “[r]ights-of-way through any Federal lands . . . for pipeline purposes.” Pub. L. 93–153, 87 Stat. 576, codified at 30 U. S. C. § 185(a). Notably, the 1973 amendment also defined “Federal lands” to include “all lands owned by the United States except lands in the National Park System, lands held in trust for an Indian or Indian tribe, and lands on the Outer Continental Shelf.” 87 Stat. 577, codified at 30 U. S. C. § 185(b). In 1970, Congress defined the National Park System as “any area of land and water now and hereafter administered by the Secretary

of the Interior through the National Park Service for park, monument, historic, parkway, recreational, or other purposes.” § 2(b), 84 Stat. 826, codified at 54 U. S. C. § 100501.

III

We are tasked with determining whether the Leasing Act enables the Forest Service to grant a subterranean pipeline right-of-way some 600 feet under the Appalachian Trail. To do this, we first focus on the distinction between the *lands* that the Trail traverses and the Trail itself, because the lands (not the Trail) are the object of the relevant statutes.

Under the Leasing Act, the “Secretary of the Interior or appropriate agency head” may grant pipeline rights-of-way across “Federal *lands*.” 30 U. S. C. § 185(a) (emphasis added). The Forest Service is an “appropriate agency head” for “Federal lands” over “which [it] has jurisdiction.” § 185(b)(3). As stated above, it is undisputed that the Forest Service has jurisdiction over the “Federal lands” within the George Washington National Forest. The question before us, then, becomes whether these *lands* within the forest have been removed from the Forest Service’s jurisdiction and placed under the Park Service’s control because the Trail crosses them. If no transfer of jurisdiction has occurred, then the lands remain National Forest lands, *i. e.*, “Federal lands” subject to the grant of a pipeline right-of-way. If, on the other hand, jurisdiction over the lands has been transferred to the Park Service, then the lands fall under the Leasing Act’s carveout for “*lands* in the National Park System,” thus precluding the grant of the right-of-way. § 185(b)(1) (emphasis added).

We conclude that the lands that the Trail crosses remain under the Forest Service’s jurisdiction and, thus, continue to be “Federal lands” under the Leasing Act.

A

We begin our analysis by examining the interests and authority granted under the Trails Act. Pursuant to the Trails